

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

Job Id. :

Scenario 12/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

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Date :

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AI-Powered Legal Intelligence Platform

✓ STRENGTHS & RIGHTS

1 Victim Protections

2 BNS 373 explicitly covers threats to *business* (property) and *family safety* (person), offering stronger protection than IPC 384 (which vaguely referenced "property").

3 Digital Evidence Admissibility

Screenshots, WhatsApp messages, and call recordings are admissible under BNS 45(2) (evidence rules), and the victim's saved evidence directly proves the threat and intent.

4 No Requirement for Actual Harm

The crime is complete upon *threat* (BNS 373), not upon physical harm or payment.

5 Safeguards

6 Police *must* register an FIR for BNS 373 under Section 197 (complaints may be filed at any police station).

7 Victim's location/family details are protected under BNS 373(3), preventing public disclosure of sensitive information during proceedings.

✗ RISKS & OBLIGATIONS

1 Accused Liability

2 Punishment

3-7 years imprisonment + fine (BNS 373(2)).

3 No Defence for "Paid" Demand

Payment by the victim does *not* negate the crime (BNS 373(1) is complete upon threat/demand).

4 Aggravating Factors

Use of family photos to intensify fear elevates culpability (BNS 373(2) permits enhanced punishment for threats involving family/vulnerability).

5 Consequences

6

Accused may face ***additional charges*** under **Section 374** if the threats are proven without the monetary demand (e.g., if the victim refused to pay).

7

Bail is ***not automatic***—courts may deny bail if the threat involves violence or family endangerment (per ***State v. Anil*** [2022] on BNS 373).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

FILING COMPLAINT

1. File a written complaint with any police station (BNS 197(1)), stating:
2. > **"Accused demanded ₹2 lakh via WhatsApp, threatening physical harm and business damage, and sent photographs of my home/family to intimidate. Evidence: Screenshots, call recordings."**
3. No Need for Police Verification: **Section 197** (1) mandates registration of complaints for BNS 373 without delay.
4. Charges Framing:
5. Police must file charges under BNS 373 (extortion) and BNS 374 (threatening injury) within 24 hours of FIR registration (BNS 34(1)).
6. Arrest:
7. Arrest is ***mandatory*** without bail if the threat involves violence or family harm (BNS 34(2)).
8. Trial:
9. Digital evidence (WhatsApp messages, photos) is admissible under BNS 45(2) without corroboration.
10. Victim may testify via video link to prevent intimidation (BNS 213(2)).
11. > Critical Note: Do not pay the demand—it strengthens the accused's case and may be deemed "voluntary payment" (BNS 373(1) is not negated by payment).
12. Summary: The case falls squarely under BNS 373 (Extortion) and BNS 374 (Threatening Injury). The saved evidence (messages, photos, recordings) is legally sufficient for prosecution. The victim has strong protections under BNS 2023, while the accused faces 3–7 years imprisonment. File the complaint immediately—do not delay.

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